

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, MAY 21, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, MAY 20, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0090614 SIERRA WES WALL SYSTEMS v. HANLON, BRANDON

Defendant Christine Hanlon's Motion to Set Aside Default Judgment

Defendant moves to set aside the default entered against her on December 22, 2025. Code of Civil Procedure section 473, subdivision (b) dictates that an "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc., § 473, subd. (b).)

Here, defendant's motion is not accompanied by a copy of the answer or other responsive pleading. Accordingly, defendant's motion is denied without prejudice.

Motion for Leave to Amend Cross-Complaint

The motion for leave to amend cross-complaint is dropped from calendar as no moving papers were filed with the court.

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2. M-CV-0091504 ADAMS, MARK v. LACK FAMILY INVESTMENTS

Plaintiff's Motion to Strike and/or Tax Defendants' Memorandum of Costs

Preliminary Matters

Plaintiff's objections are overruled in their entirety.

Ruling on Motion

Plaintiff moves to tax defendants memorandum of costs filed with the court on March 16, 2026, after plaintiff dismissed the action.

The court must first determine whether defendant is a prevailing party pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines prevailing party as

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1034, subd. (a)(4).)

Here, defendant is the prevailing party because a dismissal was entered in her favor. Thus, defendant is entitled to recover her costs. (Code Civ. Proc., § 1034, subd. (b).) Plaintiff seeks to tax the entirety of the costs memorandum.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

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Here, the challenged items of filing and motion fees are proper charges as each cost is statutorily authorized. (Code Civ. Proc., §§ 1033.5, subds. (a)(1), (3), (4), (11).) Plaintiff therefore bears the burden to show the costs were unreasonable or unnecessary. Plaintiff, however, does not meet his burden. Even assuming arguendo plaintiff did meet his burden—which he did not—defendant thereafter meets her burden to show, through the declaration of Craig Nevin and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

The challenged items of remote appearance fees is not statutorily authorized and thus “may be allowed or denied in the court’s discretion.” (Code Civ. Proc., § 1033.5, subd. (c)(4).) The court finds the remote appearance fees reasonably necessary to the litigation and reasonable in amount.

Accordingly, plaintiff’s motion is denied in its entirety.

Defendant Anita Lack’s Motion for Attorneys’ Fees

Preliminary Matters

Defendant’s requests for judicial notice are granted.

Ruling on Motion

Defendant Anita Lack moves for attorney’s fees in the amount of \$66,233.50 as the prevailing party. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(10).) Defendant asserts four separate grounds for her entitlement to attorney’s fees: Code of Civil Procedure section 1029.8; Civil Code section 8488; reciprocity; and court’s ability to issue sanctions despite plaintiff dismissing the action.

Code of Civil Procedure section 1029.8 provides that “Any unlicensed person who causes injury or damage to another person as a result of providing goods or performing services for which a license is required . . . shall be liable to the injured person for treble the amount of damages assessed in a civil action in any court having proper jurisdiction. The court may, in its discretion, award all costs and attorney’s fees to the injured person if that person prevails in the action.” (Code Civ. Proc., § 1029.8, subd. (a).) Here, there is insufficient plaintiff injured defendant. Even assuming arguendo that plaintiff injured defendant, the court exercises its discretion and declines to issue attorney’s fees pursuant to Code of Civil Procedure section 1029.8.

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Civil Code section 8488 allows the prevailing party at a hearing on a petition for a mechanic's lien to recover reasonable attorney's fees. (Civ. Code, § 8488, subd. (c).) The record reflects there was no hearing on a mechanic's lien and thus the court denies defendant's motion as to this theory.

Defendant cites *Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124 for the proposition that because plaintiff prayed for attorney's fees in the operative complaint then defendant is also entitled to recover attorney's fees. However, the case does not stand for such a proposition especially when plaintiff would not be entitled to recover attorney's fees pursuant to Civil Code section 1717 as he was not a signatory to the contract.

Finally, defendant contends she is entitled to attorney's fees because plaintiff dismissed the action before the court ruled on her motion for sanctions. However, this does not provide a basis to award attorney's fees as the prevailing party. Nor is the motion for sanctions before the court.

Accordingly, defendant's motion is denied in its entirety.

3. M-CV-0091794 LAW OFC. OF ALLAN FRUMKIN v. ROGERS, WARREN

Plaintiff's Motion for Summary Judgment

Plaintiff moves for summary judgment to its complaint for breach of contract. A motion for summary judgment or adjudication may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) Plaintiff, as the moving party, meets their burden if they prove each element of the cause of action. (*Id.* subd. (p)(1).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact exists as to the cause of action. (*Ibid.*) In reviewing a motion for summary judgment or adjudication, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

Plaintiff's breach of contract cause of action arises from defendant's alleged nonpayment for legal services rendered. Attorneys seeking to recover unpaid fees for legal services rendered for a former client must "forward a written notice to the client prior to or at the time of service of summons or claim in an action against the client, or prior to or at the commencement of any other proceeding against the client under a

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contract between attorney and client which provides for an alternative to arbitration under this article, for recovery of fees, costs, or both. The written notice shall be in the form that the board of trustees prescribes, and shall include a statement of the client's right to arbitration under this article. Failure to give this notice shall be a ground for the dismissal of the action or other proceeding.” (Bus. & Prof. Code, § 6201; Ca. St. Rules of State Bar Rule 3.501.)

Here, plaintiff does not meet its burden to establish the breach of contract cause of action because there is insufficient evidence that plaintiff provided defendant with the required notice. Accordingly, plaintiff's motion for summary judgment is denied.

4. M-CV-0096408 CAMPUS OAKS APT. v. PROVENCIO, ERICKA

Defendant's Motion to Set Aside Default

Defendant moves to set aside the default entered against her on April 8, 2026.

On May 5, 2026, the court granted defendant's ex parte application for stay pending the hearing on her motion to set aside default.

Code of Civil Procedure section 473, subdivision (b) dictates that an “[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted.” (Code Civ. Proc., § 473, subd. (b).)

Here, defendant's motion is not accompanied by a copy of the answer or other responsive pleading.

Additionally, the court's order granting defendant's ex parte application for stay required defendant to serve the court's order and her application and supporting papers on plaintiff by May 6, 2026, and file a proof of service with the court by May 6, 2026, indicating service had been completed. A review of the court record reflects no proof of service has been filed indicating service was effectuated.

Accordingly, defendant's motion is denied without prejudice.

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5. S-CV-0045236 RODRIGUEZ, JEFFREY v. JONES, GHAZALA

This tentative ruling is issued by the **Honorable Jeffrey S. Penney**. If oral argument is requested, it shall be heard on **Friday, May 22, 2026, at 1:30 p.m. in Department 44**.

Plaintiffs' Motion for an Award of Attorneys' Fees

Plaintiffs move for an award of attorneys' fees as the prevailing party pursuant to the attorney's fee provision in the sales contract in the amount of \$1,106,325.56. (Civ. Code, § 1717, subd. (b)(1); Code Civ. Proc., § 1032, subd. (a)(4).)

The sales contract provides "ATTORNEY FEES: In any action, proceeding, or arbitration between Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 22A." (Rodriguez Dec'l, Ex. 1-A.) Section 22A requires the complaining party to attempt or actually mediate the action before proceeding with litigation or arbitration. Plaintiffs satisfied this requirement.

On April 16, 2026, the court determined plaintiffs were the prevailing parties. Thus, attorneys' fees are proper here.

The court must address whether the request for \$1,106,325.56, which includes a 2.0 multiplier for Kane St. John's legal services, is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, "[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement." (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel Kane St. John. The court finds the hourly rate of \$400 is reasonable for Kane St. John for similar legal services within Placer County. However, the court finds no multiplier is warranted here.

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The court has carefully reviewed the declaration of counsel Eric Jeppson. The court finds the hourly rate of \$400 for Eric Jeppson and \$300 for Marc Guedenet are reasonable for similar legal services within Placer County.

The court has carefully reviewed the declaration of counsel Lenden Webb. The court finds the requested hourly rate of \$361 for Sydney Becker and Stella Nguyen are reasonable for similar legal services within Placer County.

The court has carefully reviewed the declaration of counsel Jeff Reich. The court finds the requested hourly rate of \$395 for Jeff Reich and \$150 for Sona Vartanian are reasonable for similar legal services within Placer County.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declarations of counsel above and any invoices attached thereto.

The court determines that 500 hours are reasonable for Kane St. John; 14.8 hours are reasonable for Eric Jeppson; 55.4 hours are reasonable for Marc Guedenet; 119.17 combined hours are reasonable for Sydney Becker and Stella Nguyen; 31 hours are reasonable for Jeff Reich; and 9.25 hours are reasonable for Sona Vartanian.

The \$1,797.66 in costs requested by Eric Jeppson and \$1,154 in costs requested by Jeff Reich are reasonable.

In sum, plaintiffs' motion is granted and the court awards plaintiff's attorney's fees in the amount of \$278,082.37 and costs in the amount of \$2,951.66 for a total award of \$281,034.03.

6. S-CV-0047684 TRIMONT LAND COMPANY v. NORTHSTAR VILLAGE

Case Management Conference

The case management conference is continued to **August 20, 2026, at 8:30 a.m. in Department 3**. A review of the court record reflects no proposed order for the parties' stipulated stay has been filed with the court despite the parties' indications a further stay may be requested.

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7. S-CV-0047732 NORTHSTAR VILLAGE ASSOC. v. CLP NORTHSTAR

Case Management Conference

The case management conference is continued to **August 20, 2026, at 8:30 a.m. in Department 3**. A review of the court record reflects no proposed order for the parties' stipulated stay has been filed with the court despite the parties' indications a further stay may be requested.

8. S-CV-0051706 NERSESYAN, OVSEP v. JUERN, JEREMY

Defendant Jeremy S. Juern M.D.'s Motion for Summary Judgment

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

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Plaintiff alleges a lone cause of action for medical negligence against defendant. A negligence cause of action requires plaintiff to establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) Where, as here, the alleged negligent acts arise from deficient medical care, the standard of care and breach elements must be established through expert opinion. (*Massey v. Mercy Medical Center Redding* (2009) 180 Cal.App.4th 690, 694.)

Here, defendant meets his initial burden to establish that his treatment of plaintiff met the applicable standard of care. (UMF Nos. 1–42.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. However, plaintiff does not oppose the motion and thus does not raise a triable issue of material fact.

Accordingly, defendant’s motion for summary judgment is granted.

Defendant Sutter Valley Hospitals’ Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Preliminary Matters

Defendant’s requests for judicial notice are granted.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff’s complaint. A motion for summary judgment may be granted if “all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the

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separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff alleges a lone cause of action for medical negligence against defendant. A negligence cause of action requires plaintiff to establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) Where, as here, the alleged negligent acts arise from deficient medical care, the standard of care and breach elements must be established through expert opinion. (*Massey v. Mercy Medical Center Redding* (2009) 180 Cal.App.4th 690, 694.)

Here, defendant meets its initial burden to establish that its treatment of plaintiff met the applicable standard of care. (UMF Nos. 1–84.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. However, plaintiff does not oppose the motion and thus does not raise a triable issue of material fact.

Accordingly, defendant’s motion for summary judgment is granted.

9. S-CV-0055246 POLIVAROV, ANDREY V. GENERAL MOTORS

Plaintiffs’ Motion for Attorney’s Fees and Costs

Plaintiff’s motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover “attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because he achieved his litigation objectives. Defendant does not challenge this. Accordingly, the court must
make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time

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expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’ ” ’ ’ ’

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit A to the declaration of Kimberli Zazzi. The court determines that 0.5 hours are reasonable for Vince Onorio, 29.1 hours are reasonable for Kimberli Zazzi, and 3.3 hours are reasonable for LaDawna Fleckenstein.

The court also observes the invoice contains entries for “MG,” “AB,” and “BP.” However, nowhere in the notice of motion, memorandum of points and authorities, declarations by counsel, reply papers, or reply declaration does plaintiff or their counsel of record indicate who these individuals are, what their positions are, or what their billed rates are. To that end, the court determines none of the hours expended by these individuals are reasonable.

The court must next address whether the requests for \$500 per hour by Vince Onorio, LaDawna Fleckenstein, and Kimberli Zazzi are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Vince Onorio, LaDawna Fleckenstein, and Kimberli Zazzi are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$11,515 for attorney’s fees and \$930.97 for costs for a total amount of \$12,445.97.

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10. S-CV-0055620 HOUSTON, CHRISTOPHER v. FCA US

Plaintiff's Motion for an Order Enforcing Defendant's Compliance with C.C.P. § 998
Offer to Compromise

Plaintiff's motion is denied without prejudice because there is no proof of service in the record indicating plaintiff served the court's ex parte order on defendant as required by the court's May 1, 2026, order granting ex parte application.

11. S-CV-0055676 CONFIDENTIAL v. COLFAX HIGH SCHOOL

The demurrer is dropped from calendar as no moving papers were filed with the court.

12. S-CV-0055712 MORIN, MARLYS v. CITY OF ROSEVILLE

Defendant County of Placer's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Demurrer

Defendant demurs to plaintiff Marlys Morin's entire first amended complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action for general negligence/premises liability/dangerous condition of public property. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant argues plaintiff does not allege facts sufficient to state the first cause of action for negligence/premises liability/dangerous condition of public property.

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Government Code Section 835 provides that

a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

- (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
- (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Government Code Section 830, subdivision (a) clarifies that “‘Dangerous condition’” means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.”

Plaintiffs alleging a dangerous condition of public property cause of action against public entities cannot generally allege what the condition is but instead “must specify in what manner the condition constituted a dangerous condition.” (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994.) To that end, “[a] dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Ibid.* [internal quotation marks omitted].)

One exception to a public entity’s liability for an alleged dangerous condition provided for by statute is the trail immunity pursuant to Government Code section 831.4. Notably,

A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of:

- (a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.
- (b) Any trail used for the above purposes.

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(c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads.
(Gov. Code, § 831.4)

This immunity is absolute. (*Leyva v. Crockett & Co., Inc.* (2017) 7 Cal.App.5th 1105, 1109.)

At the demurrer stage, courts understand that “[a]lthough the purpose for which a ... trail [is] being used is ordinarily viewed as an issue of fact [citation], it becomes one of law if only one conclusion is possible. [Citation.] Thus, where the ‘[f]air inferences from the amended complaint’ are that plaintiff’s purpose for being within the Park was recreational, and ‘he was injured during the course of that activity ... the application of section 831.4 is established as a matter of law.’” (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 596.)

Whether property is considered a trail requires a consideration of factors such as “(1) the accepted definitions of the property, (2) the purpose for which the property is designed and used, and (3) the purpose of the immunity statute.” (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 603.) (*Carroll v. Los Angeles* (1997) 60 Cal.App.4th 606, 608.)

Here, when taking the factual allegations in the first amended complaint as true, defendant does not establish the area where plaintiff’s incident occurred is a trail such that trail immunity applies to preclude liability. Plaintiff thus alleges facts sufficient to state the negligence/premises liability/dangerous condition of public property cause of action against defendant.

Accordingly, the demurrer is overruled. Defendant shall file and serve an answer on or before **June 1, 2026**.

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13. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

The motion for protective order is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0055852 VILLACARA, ADAM v. TARAS, CURT

This tentative ruling is issued by the **Honorable Michael A. Jacques**. If oral argument is requested, it shall be heard on **May 21, 2026, at 8:30 a.m. in Department 40**.

Petitioner's Motion for Prevailing Party Attorney Fees

Petitioner moves for an award of attorney's fees in the amount of \$11,508.50 plus costs in the amount of \$643.78.

Code of Civil Procedure section 527.6, subdivision (s) provides "the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any." (Code Civ. Proc., § 527.6, subd. (s).) In other words, whether to award attorney's fees to the prevailing party rests in the sound discretion of the trial court. (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802.)

Here, the court exercises its discretion and denies petitioner's request for attorney's fees. A review of the record reveals respondent filed a response that confirmed he would not contact petitioner or petitioner's family, tried to settle the matter but was rejected, and did not appear at any of the civil harassment order to show cause hearings. The court finds the uncontested nature of the matter does not warrant an imposition of attorney's fees and costs.

15. S-CV-0056156 WILT, ANGELA v. U-HAUL CO. OF CALIFORNIA

Defendant's Motion to Compel Arbitration and Stay Proceedings

Preliminary Matters

The court notes plaintiff's opposition exceeds the page limits imposed by California Rules of Court, Rule 3.1113, subdivision (d) by more than 10 pages. The court admonishes plaintiff that future pleadings must adhere to the page limits imposed by California Rules of Court, Rule 3.1113, subdivision (d).

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Ruling on Motion

Defendant moves to compel plaintiff's claims to arbitration and stay the proceedings pending resolution of arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then "bears the burden of proving by a preponderance of the evidence any fact necessary to its defense" including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) "[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit." (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets its initial burden to prove the existence of a valid arbitration agreement between the parties. (Clark Dec'l, Exs. B–C.)

The arbitration agreement here applies to "any dispute, complaint, controversy, or cause of action arising out of or relating to your relationship with U-Haul or any

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prior, current or future Transaction with U-Haul. All claims, including assigned claims, brought under any legal theory, whether at law or in equity, are covered by this Agreement and shall include, but not be limited to, all statutory and tort claims, that may be asserted. ”

Plaintiff contends the arbitration agreements is unconscionable. To establish the defense of unconscionability, both procedural and substantive unconscionability must be shown. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) However, courts evaluate unconscionability on a sliding scale whereby a greater showing of procedural unconscionability requires a lesser showing of procedural unconscionability and vice versa. (*Ibid.*)

Courts determine whether an arbitration agreement is procedurally unconscionable first by determining whether the contract is one of adhesion. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) If a contract is one of adhesion, then it contains “some degree of procedural unconscionability and requires [the court] to scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Fisher v. MoneyGram Intern., Inc.* (2021) 66 Cal.App.5th 1084, 1095.)

Substantive unconscionability, on the other hand, looks at the fairness of a contract’s terms. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 129.) Terms of a contract are substantively unconscionable if they “impair the integrity of the bargaining process or otherwise contravene the public interest or public policy or attempt to impermissibly alter fundamental legal duties.” (*Id.* at 130 [internal quotation marks omitted].)

First, plaintiff establishes a modicum of procedural unconscionability because the arbitration agreement is one of adhesion. (*Roman v. Superior Court* (2009) 172 Cal.App.4th 1462, 1470.) However, plaintiff’s other arguments regarding procedural unconscionability are unpersuasive.

Plaintiff, however, does not meet her burden to establish the arbitration agreement is substantively unconscionable. Arbitration agreements may apply “retroactively to transactions which occurred prior to execution of the arbitration agreement.” (*Salgado v. Carrows Restaurants, Inc.* (2019) 33 Cal.App.5th 356, 361.) This occurred here.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The

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action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on **Friday, November 20, 2026, at 9:00 a.m. in Department 1.**

16. S-CV-0056174 ANDERSON, STEPHEN v. RUNGE, KRISTINA

Plaintiff's Motion to Enforce Settlement

Plaintiff's motion to enforce settlement is denied because there is insufficient evidence the parties agreed pursuant to Code of Civil Procedure section 664.6 for the court to retain jurisdiction to enforce the settlement after the action is dismissed. (Code Civ. Proc., § 664.6; *see generally* Anderson Dece'l.) Here, plaintiff dismissed the action with prejudice on February 25, 2026.

17. S-CV-0056958 HUYNH, TONY v. ARASHI TOWING

Plaintiff's Motion for Preliminary Injunction

Plaintiff moves for a preliminary injunction that enjoins defendant State of California Department of Motor Vehicles from transferring any right, title, or interest in or to the vehicle during the pendency of the action.

All moving papers must be served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) This applies to motions for preliminary injunction. (*Id.* at § 527, subd. (a). The service timeline is extended depending upon the method of service. (*See generally id.* at § 1005.)

Here, there is no proof of service in the file demonstrating defendants have been served with the motion for preliminary injunction. Accordingly, plaintiff's motion for preliminary injunction is denied without prejudice.